

Raju Ali @ Muslim Ali v. State of U.P. — recovery demand relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 26 May 2022 · WRIT - C No. - 32587 of 2021 · **Writ disposed of; petitioner relegated to a clause 6.5 objection against the Section 3 recovery demand, with coercive action stayed for eight weeks or until the objection is decided, whichever is earlier.**

HEADNOTE

A writ challenging a demand notice dated 30 January 2021 under Section 3 of the U.P. Government Electricity Undertakings (Dues Recovery) Act, 1958 for Rs. 1,55,857 was disposed of without any opinion on merits. The High Court granted liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the demand-issuing officer within four weeks, to be decided in accordance with law within the next four weeks after hearing, and stayed coercive recovery for eight weeks or until disposal of the objection, whichever earlier.

FACTUAL SUMMARY

Raju Ali alias Muslim Ali challenged a demand notice dated 30 January 2021 issued by the distribution licensee under Section 3 of the U.P. Government Electricity Undertakings (Dues Recovery) Act, 1958, for Rs. 1,55,857. He sought certiorari to quash the notice and mandamus restraining recovery. The writ was listed from December 2021 while the licensee's counsel obtained instructions. On 26 May 2022, counsel for the corporation stated that the petitioner may object to the demand, to be decided in accordance with law in a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-recovery-demand-relegated-to-clause-6.5

HOLDING

Without expressing any opinion on merits, a writ challenging a Section 3 electricity dues recovery demand is disposed of by granting liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the demand-issuing officer within four weeks; such objection, if filed, shall be decided in accordance with law within the next four weeks after hearing; coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the Section 3 recovery demand was not decided on merits; the consumer was relegated to a Para 6.5 objection before the demand-issuing officer. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The Court treated Para 6.5 of the Supply Code as the statutory forum for the consumer's objection to the impugned electricity dues demand, with a time-bound decision and an interim bar on coercive recovery. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND RECOVERABILITY OF THE RS. 1,55,857 DEMAND UNDER SECTION 3 OF THE U.P. GOVERNMENT ELECTRICITY UNDERTAKINGS (DUES RECOVERY) ACT, 1958

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4

